

Train v. Colorado Public Interest Research Group, Inc.

Supreme Court of the United States
426 U.S. 1 (1976)

■ Justice Marshall delivered the opinion of the Court.

The issue in this case is whether the Environmental Protection Agency (EPA) has the authority under the Federal Water Pollution Control Act (FWPCA), as amended in 1972, 86 Stat. 816, 33 U.S.C. § 1251 et seq. (1970 ed., Supp. IV), to regulate the discharge into the Nation's waterways of nuclear waste materials [that would also be] subject to regulation by the Atomic Energy Commission (AEC) and its successors under the Atomic Energy Act of 1954 (AEA). 68 Stat. 919, as amended, 42 U.S.C. § 2011 et seq. In statutory terms, the question is whether these nuclear materials are "pollutants" within the meaning of the FWPCA. . . .

II

Since 1946, when the first Atomic Energy Act was passed, 60 Stat. 755, the Federal Government has exercised control over the production and use of atomic energy through the AEC. . . . Under the AEA, private parties are permitted to engage in the production of atomic energy for industrial or commercial purposes, but only in accordance with licenses issued by the AEC . . . in the furtherance of the purposes of the Act. 42 U.S.C. § 2133.

The comprehensive regulatory scheme created by the AEA embraces the production, possession, and use of three types of radioactive materials—source material,² special nuclear material,³ and byproduct material.⁴ In carrying out its regulatory duties under the AEA, the AEC is authorized to establish "such standards . . . as [it] may deem necessary or desirable . . . to protect health or to minimize danger to life or property." 42 U.S.C. § 2201(b). Pursuant to this authority, the AEC . . . has established by regulation maximum permissible releases of source, byproduct, and special nuclear materials into the environment by licensees. The regulations further provide that licensees should, in addition to complying with the established limits, "make every reasonable effort to maintain . . . releases of radioactive materials in effluents . . . as low as is reasonably achievable." 10 CFR § 20.1(c) (1976). Similarly, the regulations require that nuclear facilities be designed to keep levels of radioactive material in effluents "as low as is reasonably achievable." 10 CFR § 50.34a (1976).

The FWPCA established a regulatory program to control and abate water pollution, stating as its ultimate objective the elimination of all discharges of "pollutants" into the navigable waters by 1985. In furtherance of this objective, the FWPCA calls for the achievement of effluent limitations that require applications of the "best practicable control technology currently available" by July 1, 1977, and the "best available technology economically achievable" by July 1, 1983. 33 U.S.C. § 1311(b) (1970 ed., Supp. IV). These effluent limitations are enforced through a permit program. The discharge of "pollutants" into water is unlawful without a permit issued by the Administrator of the EPA or, if a State has developed a program that complies with the FWPCA, by the State. 33 U.S.C. §§ 1311(a), 1342 (1970 ed., Supp. IV).

The term “pollutant” is defined by the FWPCA to include, inter alia, “radioactive materials.” [33 U.S.C. § 1362(6) (1970 ed., Supp. IV)].⁷ But when the Administrator of the EPA adopted regulations governing the permit program, 40 CFR, pt. 125 (1975), he specifically excluded source, byproduct, and special nuclear materials—those covered by the AEA—from the program upon his understanding of the relevant legislative history of the FWPCA:

“The legislative history of the Act reflects that the term ‘radioactive materials’ as included within the definition of ‘pollutant’ in section 502 of the Act covers only radioactive materials which are not encompassed in the definition of source, byproduct, or special nuclear materials as defined by the Atomic Energy Act of 1954, as amended, and regulated pursuant to the latter Act. Examples of radioactive materials not covered by the Atomic Energy Act and, therefore, included within the term ‘pollutant’ are radium and accelerator produced isotopes.” 40 CFR § 125.1(y) (1975) (citations omitted). . . . The question we are presented with, then, is whether source, byproduct, and special nuclear materials are “pollutants” within the meaning of the FWPCA.

III

The Court of Appeals resolved the question exclusively by reference to the language of the statute. It observed that the FWPCA defines “pollution” as “the man-made or man-induced alteration of the chemical, physical, biological, and radiological integrity of water.” 33 U.S.C. § 1362(19) (1970 ed., Supp. IV). And it noted that the reference to “radioactive materials” in the definition of “pollutant” was without express qualification or exception. . . .

To the extent that the Court of Appeals excluded reference to the legislative history of the FWPCA in discerning its meaning, the court was in error. As we have noted before: “When aid to construction of the meaning of words, as used in the statute, is available, there certainly can be no ‘rule of law’ which forbids its use, however clear the words may appear on ‘superficial examination.’ ” *United States v. American Trucking Assns.*, 310 U.S. 534, 543–544 (1940) (footnotes omitted). . . .

IV

The legislative history of the FWPCA speaks with force to the question whether source, byproduct, and special nuclear materials are “pollutants” subject to the Act’s permit program. The House Committee Report was quite explicit on the subject:

“The term ‘pollutant’ as defined in the bill includes ‘radioactive materials.’ These materials are those not encompassed in the definition of source, byproduct, or special nuclear materials as defined by the Atomic Energy Act of 1954, as amended, and regulated pursuant to that Act. ‘Radioactive materials’ encompassed by this bill are those beyond the jurisdiction of the Atomic Energy Commission. Examples of radioactive material not covered by the Atomic Energy Act, and, therefore, included within the term ‘pollutant,’ are radium and accelerator produced isotopes.” H.R. Rep. No. 92–911, p. 131 (1972).

The definition of “pollutant” in the House version of the bill, H.R. 11896, 92d Cong., 2d Sess., § 502(6) (1972), contained the same broad reference to “radioactive materials” as did the definition in the Senate bill, S. 2770, 92d Cong., 1st Sess., § 502(f) (1971), and the bill ultimately enacted as the FWPCA; for our purposes the definitions are identical. . . . Thus, the House Committee, describing the import of the precise statutory language with which we are concerned, cautioned that the definition of “pollutant” did not include those radioactive materials subject to regulation under the AEA. . . .

A colloquy on the Senate floor between Senator Pastore, the Chairman of the Joint Committee on Atomic Energy, and Senator Muskie, the FWPCA’s primary author, provides a strong indication that Congress did not intend the FWPCA to alter the AEC’s control over the discharge of source, byproduct, and special nuclear materials. Senator Pastore, referring to the need to define what materials are “subject to control requirements” under the FWPCA, noted that the definition of “pollutant” included the words “radioactive materials.” 2 Leg. Hist. 1265. The following exchange then took place:

“MR. PASTORE. . . .

“My question is this: Does this measure that has been reported by the committee in any way affect the existing law, that is, the existing Atomic Energy Act of 1954, insofar as the regulatory powers of the AEC are concerned with reference to radioactive material?

“MR. MUSKIE. It does not; and it is not the intent of this act to affect the 1954 legislation.

“MR. PASTORE. In other words, this bill does not change that feature of the Atomic Energy Act in any regard?

“MR. MUSKIE. That is correct.

“MR. PASTORE. I thank the Senator.

“MR. MUSKIE. May I say in addition, that legislation dealing with the setting of effluent limitations as they involve nuclear powerplants is now pending in the courts. The Senator is aware of that litigation.

“For example, a recent decision of the U. S. Court of Appeals for the Eighth Circuit, in the case of Northern States Power and Light versus Minnesota, raises the issue. I would like to point out that the committee considered speaking specifically to that decision, but chose to remain silent so as not to prejudice the decision or any appeal from it.

“MR. PASTORE. Yes. As a matter of fact, that decision held that the Federal Government did pre-empt in this field under existing law. That is the opinion, and we hope this legislation does not change that opinion in any way, and does not affect existing law. That is all I am concerned with.

“MR. MUSKIE. The Senator is correct in his evaluation of the legislation on that point.”

Respondents contend that this colloquy “merely reiterates that the FWPCA does not alter the regulatory authority of the AEC” over source, byproduct, and special nuclear materials. Brief for Respondents 40–41. The exchange, they assert, says nothing about the EPA’s authority to regulate the same materials. The discussion is consistent, they claim, with their position that the AEC must defer to the EPA in the setting of effluent limitations for AEA-regulated materials—that, for example, NRC licenses must conform to permits issued under the FWPCA. We disagree.

The thrust of Senator Muskie’s assurances that the FWPCA would not “in any way affect” the regulatory powers of the AEC was, we think, that the AEC was to retain full authority to regulate the materials covered by the AEA, unaltered by the exercise of regulatory authority by any agency under the FWPCA. This conclusion is reinforced by Senator Muskie’s reference to the case of *Northern States Power Co. v. Minnesota*, 447 F.2d 1143 (CA8 1971). In that case, which was subsequently affirmed summarily by this Court, 405 U.S. 1035 (1972), the Eighth Circuit had held that the AEA created a pervasive regulatory scheme, vesting exclusive authority to regulate the discharge of radioactive effluents from nuclear power plants in the AEC, and preempting the States from regulating such discharges. The absence of any room for a state role under the AEA in setting limits on radioactive discharges from nuclear power plants stands in sharp contrast to the scheme created by the FWPCA, which envisions the development of state permit programs, 33 U.S.C. §§ 1342(b), (c) (1970 ed., Supp. IV), and allows the States to adopt effluent limitations more stringent than those required or established under the FWPCA. 33 U.S.C. § 1370 (1970 ed., Supp. IV). See also 33 U.S.C. §§ 1311(b)(1)(C), 1314(b), 1316(c), 1341(a)(1) (1970 ed., Supp. IV).) Senator Muskie’s specific assurance to Senator Pastore that the FWPCA would not affect existing law as interpreted in *Northern States* can only be viewed, we think, as an indication that the exclusive regulatory scheme created by the AEA for source, byproduct, and special nuclear materials was to remain unaltered.

In the course of the House’s consideration of the FWPCA, an unsuccessful attempt was made to alter the AEA’s scheme for regulating the discharge of the radioactive materials involved in this case. Representative Wolff proposed to amend what is now 33 U.S.C. § 1370 (1970 ed., Supp. IV), which gives States the authority to set more stringent limits on the discharge of pollutants, by adding a paragraph giving the States the authority to regulate the discharge of radioactive wastes from nuclear power plants. The debate on that amendment and its defeat by a 3-to-1 vote provide solid support for the conclusion that the FWPCA’s grant of regulatory authority to the EPA and the States did not encompass the control of AEA-regulated materials.

The Wolff amendment, according to its author, would “give the States a voice in deciding what kinds and amounts of such radioactive wastes may be discharged into their waters.” 1 Leg. Hist. 544. In explaining the need for such an amendment, Representative Wolff noted that the time had come “to seriously consider standards more stringent than those promulgated by the AEC.” *Id.*, at 545. Representative Frenzel, a co-sponsor of the amendment, pictured it as an attempt to alter the result in the *Northern States* case. The AEC, he explained, could not be expected to protect the health and safety of the public as effectively as the States, because “the AEC has a dual mission[,] that of promotion as well as safety.” 1 Leg. Hist. 548.

The opponents of the Wolff amendment voiced strong opposition to the transfer of the AEC's regulatory authority to the States or to the EPA. Representative Stanton, a Member of the House Committee on Public Works, which reported the House bill, stated:

“The amendment presents the House with a very complex and difficult proposition. It proposes to take authority for the setting of pollution control standards from the AEC and places it in the hands of EPA. For normal operations involving pollution, that control properly belongs under EPA. But atomic energy is a peculiar field. To date, the operation of the atomic energy program has been under the control of the Commission itself. Eventually, such control will be delegated to the States as more and more knowledgeable people at the State level become involved in the atomic energy program. That time, however, has not yet arrived. Until we reach that stage it is obvious that the control of which we speak should remain with the Atomic Energy Commission itself, as the committee points out [in the House Report] which accompanies this bill. For this reason, I would oppose the amendment offered by my distinguished colleague.” *Id.*, at 554–555. . . .

Representative McCormack, a Member of the House Committee on Public Works and Chairman of the House Science and Astronautics Committee's Task Force on Energy Research and Development, urged the amendment's defeat in similar terms. After noting the inadvisability of “throwing away” the AEC's “meticulous work” in the area of safety in favor of state regulation, he concluded:

“[I]t is obvious from the report by the House Committee on Public Works for this bill, and from the committee report from the other body that this bill does not impact directly upon the Atomic Energy Act of 1954. This bill applies only to radioactive materials not covered by the Atomic Energy Act of 1954 and, as such, the amendment is not relevant to this bill at all.” *Id.*, at 551.

Respondents urge that the Wolff amendment was addressed only to the question of the States' regulatory authority, and that its defeat did not reflect any intent to foreclose regulation of source, byproduct, and special nuclear materials by the EPA. We do not agree that the House's consideration of the Wolff amendment leaves room for EPA regulation. Several of the opponents of the amendment were quite explicit in their reliance upon the House Committee Report's statement that radioactive materials subject to AEA regulation were excluded from the coverage of the FWPCA. Neither Representative Wolff nor Representative Frenzel took issue with that interpretation in the course of the debate on their amendment, and indeed it is arguable that their amendment was premised on the assumption that source, byproduct, and special nuclear materials were wholly beyond the scope of the FWPCA. If these materials were covered by the Act—that is, if they were “pollutants”—the amendment was wholly superfluous, for the unamended [version of the FWPCA] would permit the States to regulate their discharge. . . . In our view, then, the House's consideration and rejection of the Wolff amendment offers additional support for the interpretation stated in the House Committee Report that source, byproduct, and special nuclear materials are beyond the reach of the FWPCA.

The House's rather explicit statement of intent to exclude AEA-regulated materials from the FWPCA was unchallenged by the Conference Committee, which simply retained the same

reference to “radioactive materials” contained in both the House and Senate bills. S. Conf. Rep. No. 92–1236, p. 144 (1972). Representative Harsha, a ranking member of the Conference Committee, explained the import of the Conference Committee action as follows:

“The conference report does not change the original intent as it was made clear in the colloquy between Senators Muskie and Pastore in the course of the debate in the other body. I also note that an amendment to H.R. 11896 was offered on March 28, 1972, which would have overturned the Northern States Power against Minnesota case.

“The distinguished gentleman from California (Mr. Holifield) spoke in opposition to the amendment and pointed out the necessity of not changing the careful division of authority between the States and the Federal Government over nuclear materials and facilities as enunciated in the Northern States case. The amendment was defeated by a 3-to-1 vote of the House.

“I can say to the gentleman from Illinois that the managers in no way detracted from the intent of the language in H.R. 11896. I also note that the Committee on Public Works in its report [states] . . . that the term ‘pollutant’ as defined in the bill includes ‘radioactive materials.’ These materials are not those encompassed in the definition of source, byproduct, or special nuclear materials as defined by the Atomic Energy Act of 1954, as amended, and regulated pursuant to that act. ‘Radioactive materials’ encompassed by this bill are those beyond the jurisdiction of the Atomic Energy Commission. Examples of radioactive materials not covered by the Atomic Energy Act, and, therefore, included within the term ‘pollutant’ are radium and accelerator produced isotopes. This language adequately reflects the intent of the managers of the conference report.” *Id.*, 226–227.

With no one expressing a different view of the Conference action, the House proceeded to agree to the Conference Report.

V

If it was not clear at the outset, we think it abundantly clear after a review of the legislative materials that reliance on the “plain meaning” of the words “radioactive materials” contained in the definition of “pollutant” in the FWPCA contributes little to our understanding of whether Congress intended the Act to encompass the regulation of source, byproduct, and special nuclear materials. To have included these materials under the FWPCA would have marked a significant alteration of the pervasive regulatory scheme embodied in the AEA. Far from containing the clear indication of legislative intent that we might expect before recognizing such a change in policy, the legislative history reflects, on balance, an intention to preserve the pre-existing regulatory plan.

We conclude, therefore, that the “pollutants” subject to regulation under the FWPCA do not include source, byproduct, and special nuclear materials, and that the EPA Administrator has acted in accordance with his statutory mandate in declining to regulate the discharge of such materials. The judgment of the Court of Appeals is

Reversed.

- Mr. Justice Stevens took no part in the consideration or decision of this case.